

English for Lawyers 2

Lecturer: Miljen Matijašević
G10, room 6/I

e-mail: miljen.matijasevic@pravo.hr

Session 11, 4 May 2023

Revision



Complete the sentences I

1. The British Parliament has two c_____ (houses). The members of the House Commons are e_____ (chosen by vote), while the members of the House of Lords are a_____ (designated by an authority). The UK has no written c_____ (the supreme legal act).
2. Common law is based on judicial p_____ (previous court decisions). Those of higher courts are b_____ (must be followed). Those of lower courts are p_____ (do not have to be followed).
3. Magistrates are l_____ (not professional) judges who are not paid for their work.
4. There are two types of lawyers in the UK: _____ and _____, who have the right of a_____ in higher courts.
5. In the UK serious criminal cases are heard in the _____ Court, while civil cases are heard in _____ courts.

Complete the sentences I

1. The British Parliament has two CHAMBERS. The members of the House Commons are ELECTED, while the members of the House of Lords are APPOINTED. The UK has no written CONSTITUTION.
 2. Common law is based on judicial PRECEDENTS. Those of higher courts are BINDING. Those of lower courts are PERSUASIVE.
 3. Magistrates are LAY judges who are not paid for their work.
 4. There are two types of lawyers in the UK: SOLICITORS and BARRISTERS, who have the right of AUDIENCE in higher courts.
 5. In the UK serious criminal cases are heard in the CROWN Court, while civil cases are heard in COUNTY courts.
- 

administrative – advocacy – bill – budget – case – conveyancing
debating – draft – instruction – instrument – mandate – ratio – scrutiny

1. The binding part of a precedent is called
decidendi.
2. are proposed by the Cabinet and debated in Parliament.
3. Solicitors take from lay clients, wills and contracts, and do They can speak in higher courts if they have a(n) qualification.
4. The main functions of the British Parliament are government, issues of the day, making and changing laws, and checking and approving the state
5. Delegated legislation is passed by bodies, and includes acts such as statutory
6. law is a source of law in the common law systems.

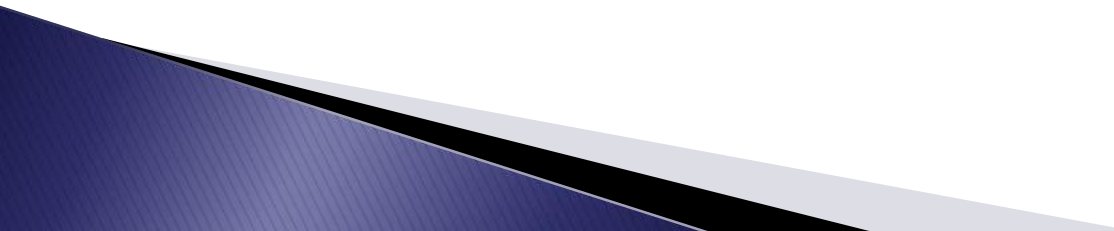
Translate into Croatian

1. The binding part of a precedent is called *RATIO decidendi*.
2. **BILLS** are proposed by the Cabinet and debated in Parliament.
3. Solicitors take **INSTRUCTIONS** from lay clients, **DRAFT** wills and contracts, and do **CONVEYANCING**. They can speak in higher courts if they have a(n) **ADVOCACY** qualification.
4. The main functions of the British Parliament are government **SCRUTINY**, **DEBATING** issues of the day, making and changing laws, and checking and approving the state **BUDGET**.
5. Delegated legislation is passed by **ADMINISTRATIVE** bodies, and includes acts such as statutory **INSTRUMENTS**.
6. **CASE** law is a source of law in the common law systems.

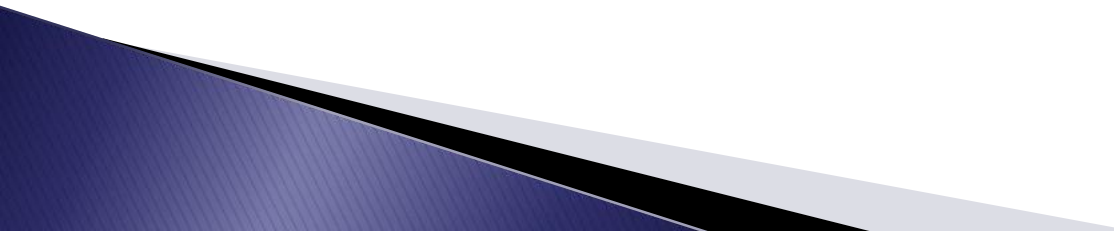
Translate into Croatian

1. Obvezujući dio presedana naziva se *ratio decidendi*.
2. Zakonodavne prijedloge predlaže Vlada, a raspravljaju se u Parlamentu.
3. Solicitore unajmljuju klijenti laici. Bave se sastavljanjem oporuka i ugovora i prijenosom prava vlasništva. Imaju pravo zastupanja u višim sudovima ako imaju dozvolu za zastupanje.
4. Glavne funkcije Britanskog parlamenta su nadzor rada vlade, raspravljanje o tekućim problemima, donošenje i mijenjanje zakona, te provjera i odobravanje državnog proračuna.
5. Delegirano zakonodavstvo donose upravna tijela, a uključuje akte kao što su provedbeni propisi (uredbe, pravilnici)
6. Sudska praksa je izvor prava u *common law* sustavima.

Explain/translate the following terms

- ▶ hold judicial office
 - ▶ statute law
 - ▶ equity
 - ▶ to have jurisdiction in commercial matters
 - ▶ hear a case
 - ▶ appear in court
 - ▶ reverse the judgment
 - ▶ dissolve Parliament
- 

Explain/translate the following terms

- ▶ obavljati sudačku dužnost
 - ▶ zakonodavstvo
 - ▶ equity, pravo pravičnosti
 - ▶ imati nadležnost u trgovačkim stvarima
 - ▶ voditi postupak, predmet
 - ▶ zastupati stranku u sudu
 - ▶ ukinuti presudu
 - ▶ raspustiti Parlament
- 

Thank you for your attention!

